Fort Bend County District Court

Cause No. 2025-CV-0043

David Patterson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-17-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies all allegations and asserts that Plaintiff must prove every element of the claims asserted.

For further answer, and without assuming any burden of proof that it would not otherwise bear, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision, including following too closely, failing to keep a proper lookout, and failing to timely apply the brakes. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff is barred from recovery if that percentage exceeds fifty percent.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33 and requests submission of the percentage of responsibility of all persons and entities who caused or contributed to the harm alleged, including any settling or responsible third party designated under Section 33.004.

Third, Plaintiff's alleged damages, including past and future medical expenses, were not reasonably incurred or were not caused by the collision. Defendant further invokes Section 41.0105 of the Texas Civil Practice and Remedies Code, limiting recovery of medical expenses to amounts actually paid or incurred by or on behalf of Plaintiff.